

25LBCV00255 25LBCV00255

County: los-angeles

Division: Civil Law and Motion

Department: S28

Hearing date: 2026-09-24

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LB%20%2CS28%2C09%2F24%2F2026

Source SHA-256: a3e71bee0460b7963fcc7084e4b3e845172830324dfd2bfd12d39c8dab36ca40

Case Number: 25LBCV00255 Hearing Date: September 24, 2026 Dept: S28

BACKGROUND

On

February 3, 2025, plaintiff Noe Estrada ("Plaintiff") filed a complaint against defendant American Honda Motor Co., Inc. ("Defendant") and DOES 1 through 10, inclusive, alleging the following causes of action: (1) Violation of Subdivision (D) of Civil Code Section 1793.2; (2) Violation of Subdivision (B) of Civil Code Section 1793.2; (3) Violation of Subdivision (A)(3) of Civil Code Section 1793.2; (4) Breach of the Implied Warranty of Merchantability; and (5) Fraudulent Inducement – Concealment.

On

June 11, 2025, Plaintiff filed the operative First Amended Complaint ("FAC") against Defendant, which asserts the same causes of action set forth in the complaint.

On

August 14, 2025, after hearing and taking the matter under submission, the Court overruled the demurrer and motion to strike of Defendant. (08/14/26 Minute Order.)

On

August 29, 2025, Defendant filed an answer.

On

April 22, 2026, Defendant filed the instant motion for summary adjudication as to each cause of action in the FAC as well as the prayer for punitive damages.

On

July 29, 2026, Plaintiff filed an opposition.

On

August 12, 2026, Defendant replied.

On

August 18, 2026, after hearing, the Court continued the hearing on the motion for summary adjudication due to procedural defects in the separate statement of Plaintiff. (08/18/26 Minute Order at p. 1.) The Court noted that there were “multiple formatting errors in Plaintiff’s separate statement in opposite which must be cured” (Id. at pp. 1-2.) The Court found that the separate statement of Plaintiff was “not in compliance with CRC rule 3.1350(d) as Plaintiff’s additional material facts are not in the two-column format specified in (h).” (Id. at p. 2.) Moreover, the Court indicated that Plaintiff’s separate statement “sets forth abbreviated facts under issues 2-6, referring the Court to issue one. This is improper and puts an undue burden on the Court.” (Id.)

Additionally,

the Court noted that Plaintiff’s opposition brief lacked page numbers and was in violation of California Rules of Court, Rule 2.109. (08/18/26 Minute Order at p. 2.)

The

Court ordered Plaintiff “to file a compliant separate statement in opposition, and Defendant to in turn file their reply to Plaintiff’s corrected separate statement, by August 31, 2026.” (08/18/26 Minute Order at p. 2.) Defendant was ordered to file a reply no later than September 4, 2026. (Id.)

On

August 31, 2026, Plaintiff filed an opposition, which sets forth page numbers therein. Also, on such date, Plaintiff filed an amended separate statement.

On

September 4, 2026, Defendant filed a response to the amended separate statement.

DISCUSSION

Applicable

Law

The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom [citation] and must view such evidence [citations] and such inferences [citations] in the light most favorable to the opposing party.” (Aguilar, supra, at pp. 844-845 [quotation marks omitted].)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) “A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (Code Civ. Proc. § 437c, subd. (p)(2).)

To establish a triable issue of material fact, the party opposing the motion must produce substantial

responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.) "If the plaintiff cannot do so, summary judgment should be granted." (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.) "Summary adjudication motions are procedurally identical to summary judgment motions." (Serri v. Santa Clara University (2014) 226 Cal.App.4th 830, 859.)

Analysis

A. Deficiencies in Plaintiff's Amended Separate Statement

The

Court has reviewed the amended separate statement of Plaintiff, which was filed in

response to the Court's August 18, 2026 order.

An

opposition separate statement in a motion for summary adjudication must be set forth in a two-column format. (Cal. Rules of Court, Rule 3.1350(h).) Moreover, an opposition separate statement "must unequivocally state whether that fact is disputed or undisputed." (Cal. Rules of Court, Rule 3.1350(f)(2).) "Citation to the evidence in support of the position that a fact is controverted must include reference to the exhibit, title, page, and line numbers." (Id.)

The

Court finds that the amended separate statement of Plaintiff is procedurally improper. Plaintiff has not cured the defects identified in the Court's August 18, 2026 minute order.

First,

as with the prior separate statement of Plaintiff, the Court finds that Plaintiff has still not set forth some of the additional material facts in the two-column format. (See Plaintiff's Amended Separate Statement Filed August 31, 2026 ("Amended Separate Statement") at pp. 4-5, 12.) As stated in the Court's August 18, 2026 order, the lack of a two-column format prevents Defendant from responding in reply. (August 18, 2026 Minute Order at p. 2.)

Moreover,

the Amended Separate Statement still sets forth abbreviated facts under issues 2-6. (Amended Separate Statement at pp. 4-11.) Plaintiff was advised that such abbreviations of fact were improper and put an undue burden on the Court. (August 18, 2026 Minute Order at p. 2.)

Additionally,

the Court notes that Plaintiff has failed to unequivocally state whether certain facts are disputed or undisputed. For instance, in response to Defendant's UMF Nos. 13-14, Plaintiff indicates that such facts are disputed in part. (See Amended Separate Statement at p. 2.) There are numerous instances where Plaintiff has failed to unequivocally indicate whether a fact is disputed or undisputed. (Id. at pp. 2, 4-6.) Due to Plaintiff's failure to comply with the California Rules of Court, the Court therefore deems such facts as undisputed.

Furthermore,

there are instances where Plaintiff has failed to cite to the paragraph of Plaintiff's declaration offered in support of a disputed fact. (Amended Separate Statement at p. 2.) A general citation to the declaration of Plaintiff without citation to the paragraph, page, or line number is much too conclusory and is not compliant with Cal. Rules of Court, Rule 3.1350(f)(2).

Also,

Plaintiff cites to evidence that is not attached as an exhibit to Plaintiff's declaration in support of the opposition. For instance, Plaintiff cites to NHTSA reports and provides a website link; however, such reports are not attached to the declaration of Plaintiff in support of the opposition. (Amended Separate Statement at p. 11.) Critically, no exhibits are attached to the declaration of Plaintiff in support of the opposition.

In

sum, the Amended Separate Statement is deficient. As stated above, to the extent that Plaintiff has failed to unequivocally indicate whether a fact is disputed or undisputed, the Court will deem such facts as undisputed. The Court has given Plaintiff the opportunity to file a compliant separate statement. Plaintiff is informed that the purpose of a procedurally compliant opposition separate statement is to provide proper notice to the moving party. (San Diego Watercrafts, Inc. v. Wells Fargo Bank, N.A. (2002) 102 Cal.App.4th 308, 316.)

Due

to the lack of a procedurally compliant opposition separate statement, such fact constitutes “a sufficient ground . . . for granting the motion.” (Rush v. White Corp. (2017) 13 Cal.App.5th 1086, 1097.) The Court has given Plaintiff an opportunity and notice to correct the deficiencies in the initial opposition separate statement. (Id. at p. 1100 [finding that granting of summary judgment was proper where plaintiffs had an opportunity to cure defects in separate statement but failed to cure such defects].) However, Plaintiff has failed to cure the deficiencies.

The

deficiencies of the Amended Separate Statement constitute an independent ground for granting the instant motion. (See Rush v. White Corp., supra, 13 Cal.App.5th 1086.) The Court, however, will still assess the merits of the motion.

B. Defendant's Evidentiary Objections

1. Objection 1: SUSTAINED on the grounds of hearsay. (Evid. Code § 1200.)

2. Objection 2: SUSTAINED on the grounds of hearsay. (Evid. Code § 1200.)

3. Objection 3: SUSTAINED on the grounds of hearsay. (Evid. Code § 1200.)

4. Objection 4: OVERRULED.

5. Objection 5: SUSTAINED on the grounds of hearsay. (Evid. Code § 1200.)

6. Objection 6: SUSTAINED on the grounds of hearsay. (Evid. Code § 1200.)

7. Objection 7: OVERRULED.

8. Objection 8: SUSTAINED on the grounds of hearsay. (Evid. Code § 1200.)

9. Objection 9: OVERRULED.

10. Objection 10: SUSTAINED on the grounds of hearsay. (Evid. Code § 1200.)

C. ISSUE NO. 1, 2, and 3: Plaintiff's

First, Second, and Third Causes of Action are Time-Barred

Defendant

contends that the first, second, and third causes of action in the operative FAC are time-barred. Plaintiff argues that the claims are timely.

Because

the Song-Beverly Act is silent on any limitations period for express warranty claims brought thereunder, they are governed by the statute of limitations for warranties in Commercial Code section 2725. (Krieger v. Nick Alexander Imports, Inc. (1991) 234 Cal.App.3d 205, 213-215, fn.5; accord, Mexia v. Rinker Boat Co., Inc. (2009) 174 Cal.App.4th 1297, 1305-1306 ["California courts have held that the statute of limitations for an action for breach of warranty under the Song-Beverly Act is governed by the same statute that governs the statute of limitations for warranties arising under the California Uniform Commercial Code: section 2725"].) Accordingly, "the same rule of accrual must apply." (Krieger, 234 Cal.App.3d at 219.) Under section 2725(1), an action for breach "must be commenced within four years after the cause of action has accrued." (Cal. Com. Code § 2725(1).) "A cause of action accrues when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach." (Cal. Com. Code § 2725(2).) "A breach of warranty occurs when tender of delivery is made, except where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered." (Ibid.)

Defendant's Burden

Defendant presents the following

undisputed material facts: on September 29, 2018, Plaintiff purchased a 2018 Honda Civic (the "Subject Vehicle") from Robertson Palmdale Honda. (See Amended Separate Statement at UMF 1.) Plaintiff presented the Subject Vehicle to Robertson Palmdale Honda on November 15, 2018, for a loss of power concern. (Id.

at UMF 13.) Plaintiff presented the Subject Vehicle to a Honda dealership for persisting concerns on three occasions: January 10, 2019, April 30, 2019, and October 15, 2019. (Id. at UMF 14.)

Defendant presents evidence that

Plaintiff knew that his vehicle was “broken” at around 2,000 miles, which was prior to his first repair visit on November 15, 2018. (Defendant’s Compendium of Evidence (COE), Ex. A at pp. 71:22-73:11.) Plaintiff did not conduct any internet research about the problems with the Subject Vehicle. (Id., Ex. A at p. 141:9-11.) Plaintiff alleges that Defendant breached the express warranty under Civ. Code §§ 1793.2 and 1794 no later than April 30, 2019, which is when Defendant’s authorized repair facility completed its third unsuccessful repair attempt at approximately 10,263 miles. (Defendant’s COE, Ex. B at pp. 75, 78.)

The

Court finds that Defendant has met its burden in showing that the first, second, and third causes of action are barred by the applicable statute of limitations. Defendant has presented evidence that Plaintiff knew the Subject Vehicle was “broken” prior to the first repair visit on November 15, 2018. Moreover, in response to Defendant’s special interrogatories, Plaintiff indicated that the express warranty was breached no later than April 30, 2019. (Defendant’s COE, Ex. B at pp. 75, 78.) The instant action was not filed until February 3, 2025.

Thus,

Defendant has met its burden in showing that the first, second, and third causes of action are untimely. The burden now shifts to Plaintiff to show a triable issue of material fact.

Plaintiff’s Burden

In opposition, Plaintiff declares, inter alia, that he purchased the Subject Vehicle on or about September 29, 2018. (Declaration of Noe Estrada Filed July 30, 2026 (“Estrada Decl.”) ¶ 2.) Prior to purchasing the Subject Vehicle, Plaintiff relied on the reputation of Honda as a manufacturer of reliable automobiles. (Id. ¶ 3.) “No one at the dealership and no materials [Plaintiff] reviewed told [Plaintiff] that the Vehicle or its engine had any known defects.” (Id.) Plaintiff would not have purchased the Subject Vehicle had Plaintiff known about the engine defects. (Id. ¶ 3.)

Plaintiff began experiencing problems shortly after purchasing the Subject Vehicle. (Id. ¶ 4.)

On November 15, 2018, Plaintiff brought the Subject Vehicle to the dealership for a loss of power concern. (Estrada Decl. ¶ 5.) Plaintiff presented the Subject Vehicle to the dealership on January 10, 2019, April 30, 2019, and October 15, 2019 for concerns. (Id. ¶¶ 6-8.) Each time Plaintiff took the Subject Vehicle to the dealership, Plaintiff “trusted that the dealership and Honda would eventually fix the problem.” (Id. ¶ 9.) “The technicians never told [Plaintiff] that the problem could not be fixed.” (Id.) No one ever advised Plaintiff of “Technical Service Bulletins, warranty extensions, campaigns, or recalls” (Id. ¶ 10.) Plaintiff still owns the Subject Vehicle and still experiences engine issues. (Id. ¶ 15.) Plaintiff only learned of a recall concerning the issue he has been experiencing with the Subject Vehicle on November 5, 2024, which is when Plaintiff brought the Subject Vehicle to AutoNation Honda in Valencia for a fuel pump motor safety recall. (Id. ¶ 13.)

The Court finds that Plaintiff has failed to create a triable issue of material fact as to when he discovered or should have discovered the transmission defect with the Subject Vehicle. (FAC ¶¶ 11-17.) A cause of action accrues “when [a plaintiff] at least suspects a factual basis, as opposed to a legal theory, for its elements, even if he lacks knowledge thereof” (Norgart v. Upjohn (1999) 21 Cal.4th 383, 397.) Here, Plaintiff does not present any evidence contradicting that he testified at deposition that the Subject Vehicle was “broken” prior to the first repair visit.

Moreover, in responses to discovery, Plaintiff alleges the date of breach as no later than April 30, 2019. Plaintiff should have had reason to suspect that a defect existed with the Subject Vehicle no later than October 15, 2019. (Norgart, supra, 21 Cal.4th 383, 398.) Plaintiff cannot now attempt to contradict his sworn discovery responses to avoid summary adjudication. (See D’Amico v. Board of Medical Examiners (1974) 11 Cal. 3d 1, 21-22.) Plaintiff has not produced substantial responsive evidence to create a triable issue of material fact on the statute of limitations issue. Plaintiff has also not presented admissible evidence that Plaintiff exercised reasonable diligence. (Nguyen v. Western Digital Corp. (2014) 229 Cal.App.4th 1522, 1553.)

Therefore, summary adjudication is GRANTED

as to Issues No. 1, 2, and 3.

D. ISSUE NO. 4: The Breach of Implied
Warranty Cause of Action is Untimely

Defendant

contends that the fourth cause of action for breach of the implied warranty of merchantability is untimely.

“When

there has been a breach of the implied warranty of merchantability, a buyer may bring an action for the recovery of damages and other legal and equitable relief.” (Mexia v. Rinker Boat Co., Inc., supra, 174 Cal.App.4th 1297, 1303 [internal quotations omitted].) “The implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale.” (Id. at p. 1304.) “In the case of a latent defect, a product is rendered unmerchantable, and the warranty of merchantability is breached, by the existence of the unseen defect, not by its subsequent discovery.” (Id. at p. 1305.) “The statute of limitations for breaches of the implied warranty of merchantability is four years.” (Montoya v. Ford Motor Company (2020) 46 Cal.App.5th 493, 495.) “A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered.” (Mexia v. Rinker Boat Co., Inc., supra, 174 Cal.App.4th 1297, 1306.)

The

Court references its recitation of the parties’ evidence as well as its analysis from above and incorporates such recitation herein. The Court finds that the fourth cause of action for breach of the implied warranty of merchantability is untimely. As stated above, the breach of warranty should have been discovered in any event no later than October 15, 2019. Here, the complaint was not filed until February 3, 2025. Thus, the fourth cause of action is time-barred.

Summary

adjudication as to Issue No. 4 is GRANTED.

E. ISSUE NO. 5: The Fraudulent

Concealment Claim is Time-Barred

Defendant contends that the fifth cause of action for fraudulent concealment is time-barred.

A cause of action for fraudulent concealment is subject to a three-year statute of limitations. (Rivas v. Safety-Kleen Corp. (2002) 98 Cal.App.4th 218, 229.)

The Court references its recitation of the parties' respective evidence from above and incorporates such recitation herein. The Court finds that the fifth cause of action for fraudulent concealment is time-barred. Plaintiff has not presented sufficient evidence to warrant a finding that the purported fraudulent concealment of Defendant should toll the statute of limitations. To invoke fraudulent concealment to toll the statute of limitations, Plaintiff must show: (1) the substantive elements of fraud; and (2) an excuse for the late discovery of the facts. (Investors Equity Life Holding Co. v. Schmidt (2011) 195 Cal.App.4th 1519, 1533.) Plaintiff has not presented admissible evidence of the substantive elements of fraud. (See Lazar v. Superior Court 1996) 12 Cal.4th 631, 638 [explaining the elements of fraud].) Moreover, Plaintiff has not presented a sufficient explanation for the late discovery of the facts. Critically, as stated above, Plaintiff knew of issues with the Subject Vehicle as early as November 2018. In any event, Plaintiff should have had some indicia of wrongdoing by October 15, 2019. Plaintiff cannot now attempt to contradict his deposition testimony and discovery responses to defeat summary adjudication.

Due to the Court's finding that the fifth cause of action is time-barred, the Court need not address the other arguments raised as to the fifth cause of action.

Summary adjudication as to Issue No. 5 is GRANTED.

F. ISSUE NO. 6: Plaintiff's Prayer for Punitive Damages Fails

Defendant contends that the prayer for punitive damages fails because Plaintiff has no causes of action to support a finding of punitive damages.

The Court finds that since summary adjudication has been granted as to each cause of action in the FAC (as well as the deficient Amended Separate Statement serving as an independent basis for granting of the motion), the prayer for punitive damages is improper.

Assuming arguendo that

Plaintiff had a viable cause of action to support punitive damages, the Court would have found that there was no basis for punitive damages pursuant to Civil Code Section 3294 as Plaintiff has presented insufficient evidence to make a showing of oppression, fraud, or malice as to Defendant.

Summary adjudication as to Issue No.

6 is GRANTED.

CONCLUSION

Defendant's Motion for Summary Adjudication is
GRANTED in its entirety.